

Instructor: Date:

Learner: Regional Branch:

Program: Center:

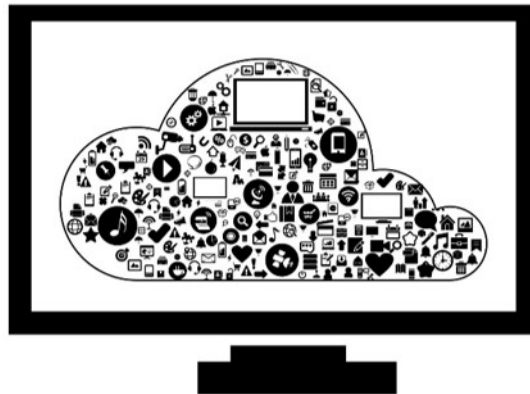
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Let's Start!

Talking about cloud services!



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Create a report on fulfilment of terms of reference, based on the participation of each agent in regards to the satisfaction of IT goods contracted and received, according to rules and protocols of the organization.

Ask your partner:

- What aspects should a customer consider when using cloud services?
- What should a customer do in case his vendor fails?

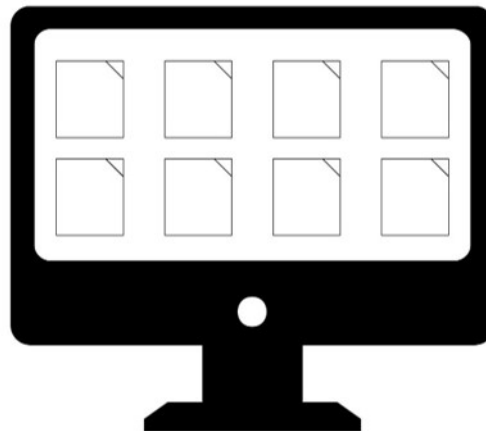
Can Do Statements:

- I can understand written information about key provisions in a "software as a service" contract.
- I can use vocabulary to relate to key provisions in a "software as a service" contract.
- I can write a simple text to present key provisions in a "software as a service" contract for the company I work for.



Let's Explore!

What about the provisions in a "software as a service" contract?

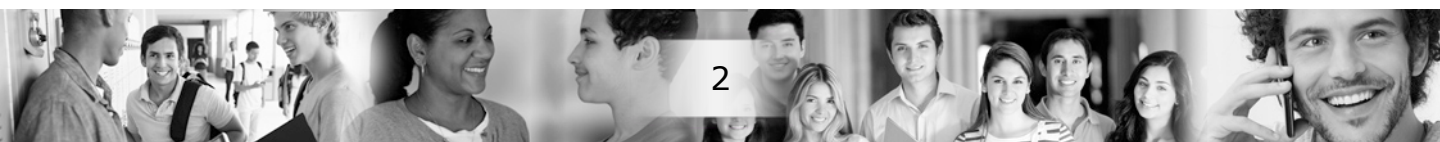


Instructions: Read the text below.

Software as a Service (SaaS), commonly called cloud service, allows companies to store data and applications over the Internet. To do so, companies and service providers need to sign a SaaS contract, in which a definitive service guarantee must be provided. This guarantee is called Service Level Agreement (SLA), and some provisions, such as availability of data, must be included on it. An SLA obligates providers to know the standard of availability or uptime as a percentage of time. Response times from the service provider must be stated clearly as well so as to avoid breakdowns.

Besides, fix times should be agreed upon a period of time according to the severity of the problem. Good thing is that vendors are always willing to fix issues immediately, especially if others are experiencing the same situation. Plus, if the vendor doesn't fulfill his obligations, the customer can call for a contract termination due to breach; as a remedy, the vendor must offer a cure period that should be measured in days; otherwise, the customer will have to rush to get a new provider. When customers want to acquire software as a service, the standard SLA contract must be given right away, and they should start negotiating afterwards.

Customers must read the document carefully because, like any other contract, there are legal consequences if the provisions are not clear. On the contract, the vendor must warrant a security plan to protect customers' data and applications. Also, any security breach must be notified, no matter how reluctant the providers are. Other provisions include privacy, export, and jurisdictional issues that show up out of the location of the cloud service, which could trigger export laws. To conclude, the SaaS contract must be checked and negotiated in detail by both parties, service providers and customers, to avoid misapprehensions.





Let's Practice!

What must be taken into account in an *above board* * SaaS contract? Can you spot the key terms?

* A business is said to be "*above board*" when is honest and legal.

Instructions: Write the words to correctly complete the sentences. Use words from the box below.

Fix times / definitive service guarantee / cure period /
Uptime / service level agreement /

1. Availability of data must be included in the _____.
2. In case of contract termination, a _____ must be provided by the SaaS vendor.
3. A _____ should be provided by the vendor in the SaaS contract.
4. The _____ as percentage of time clause should be explained in detail to the customer by the service provider.
5. If there is any problem, _____ should be agreed depending on the severity of the situation.



Let's Practice!

Some details to bear in mind* before signing a SaaS contract.

* To "*bear in mind*" means to remember something because it is important.

Instructions: Match the items from column A with the corresponding ones in Column B.

COLUMN A

1. The provisions of the SaaS contract must be analyzed in...
2. Before the negotiations, the SLA contract must...
3. If the customer wants an efficient cloud service,
4. Cure periods in case of breach should be measured
5. A security plan to protect customers'
6. and some provisions, such as availability of data,

COLUMN B

- a. must be included on the SLA.
- b. be given to the customer.
- c. data must be specified in the SaaS contract.
- d. in days. That way, the customer does not rush to get a new provider.
- e. some provisions, such as availability of data must be included.
- f. detail and taken into account.



Extension Activity

As we have been talking about Software as a Service (SaaS) contracts, it's time for you to do more research about it.

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for information on how you construct a SaaS contract. Pay special attention to the provisions that were not mentioned in class.
- Make a list with those specifications.
- Write a text as if you were going to present the characteristics of a SaaS contract to a company. Describe every provision researched.
- Use the passive of modal verbs: must and should.
- Share your text with a partner.

Self-Assessment

Yes No

- | | | |
|---|-----------------------|-----------------------|
| 1. I look for information about SaaS contracts. | ☐ | ☐ |
| 2. I list the different provisions in a SaaS contract. | ☐ | ☐ |
| 3. I write a text describing the characteristics of a SaaS in order to present the document to a company. | ☐ | ☐ |
| 4. I include the passive of modal verbs (should and must) in the text. | ☐ | ☐ |
| 5. I read the text with a partner. | ☐ | ☐ |



Target Words

- **rush** (verb): to hurry for doing something.
e.g. The vendor must offer a cure period that should be measured in days; otherwise, the customer will have to rush to get a new provider.
- **guarantee** (noun): something that promises a particular outcome.
e.g. This guarantee is called Service Level Agreement (SLA), and some provisions, such as availability of data, must be included on it.
- **uptime** (noun): period of time in which data is available.
e.g. An SLA obligates providers to know the standard of availability or uptime as a percentage of time.
- **breakdown** (noun): the failure of a process.
e.g. Response times from the service provider must be stated clearly as well so as to avoid breakdowns.
- **warrant** (verb): to certify or ensure services.
e.g. On the contract, the vendor must warrant a security plan to protect customers' data and applications.
- **breach** (noun): a disruption of an arrangement or contract.
e.g. Also, any security breach must be notified, no matter how reluctant the providers are.



Learning Points

The Passive of Modal Verbs, Must and Should

Must and **Should** in **passive voice** are used to express obligations and suggestions from an unknown or non-relevant performer.

Must in passive voice has three uses:

To express that something has to be done because it's compulsory.

To talk about something that is likely to be like that because of a logical explanation or real evidence.

To express urgent or strong advice.

For example:

*The contract **must be signed** after reading it all.*

Should is used:

To express what we think is right or wrong.

To express advice or suggestions.

For example:

*The provisions **should be explained** in detail.*

This is the grammatical structure to use **must** and **should** in passive voice:

Subject + Must/Should + Be + Past participle verb + Complement

Examples

- *Response times from the service provider must be stated clearly as well so as to avoid breakdowns.*
- *The vendor must offer a cure period that should be measured in days.*
- *When customers want to acquire software as a service, the standard SLA contract must be given right away, and they should start negotiating afterwards.*

Metrics Service Level Agreements

A service-level agreement contains some metrics that need to be specified when accessing the service.

A service-level agreement (SLA) is a contract that a service provider and a customer meet when getting cloud services.

Some metrics that SLAs may specify are:

- Specific standards to be sporadically compared.
- Application time.
- Changes notifications.
- Help assistance for different problems.
- Statistics use provided.

